

HESSLER v. KAUTZ VINEYARDS et al

21CV45613

DEFENDANT'S DISCOVERY MOTIONS

This is a personal injury, premises liability action. Plaintiff generally alleges that she was attending an event at defendant's venue when she and another guest lost their footing/balance near a rope barricade, resulting in injury to plaintiff.

Before the Court are the following discovery motions:

1. Defendant's motion to compel an initial response to form interrogatories;
2. Defendant's motion to compel an initial response to special interrogatories;
3. Defendant's motion to compel an initial response to RPDs;
4. Defendant's motion to have the RFAs deemed admitted.

In addition to discovery orders, defendant also seeks a total of \$1,600.00 in sanctions.

One of the motions is technically deficient in that it combines three distinct motions in one. (See CCP §1003.) Pursuant to Govt Code §70617, defendant was required to tender \$60 for each motion seeking an order even if the motions are heard together. In other words, although one commingled memorandum is permissible (CRC 3.1112(c)), counsel still had to tender three filing fees. Defense counsel is directed to the clerk's office to pay the requisite additional \$120 in filing fees.

The overdue discovery was first served on plaintiff via electronic mail on 05/11/22, and re-served on counsel on 07/07/22 (following some concern that the email attachments did not go through). That same day, plaintiff died. Since then, this case has remained in quasi-limbo waiting for plaintiff's successor in interest to assume control of the litigation. Much to this Court's concern, and despite a warning to the parties that cooperation needs to take place for a successor in interest to take over (see Minute Order dated 12/02/22), nothing has been done until just recently. As explained by plaintiff's counsel in her recent filing, a personal representative has yet to be appointed, despite there being an active probate case filed in Sacramento County (see 34-2023-00336226). Although counsel expected the family to agree to allow Stephanie to serve as successor in interest in this case, that agreement was apparently not quickly forthcoming, thus requiring additional court effort in Sacramento. Given that plaintiff died almost 11 months ago, this Court can see no cogent reason for why no personal representative has been appointed. Certainly, plaintiff's counsel has not offered any explanation for the delay.

While this Court understands defendant's frustration – waiting 12 months for basic discovery responses – defendant never moved (CCP §377.31) for an order of substitution (CCP §377.33). Since orders deemed prejudicial to the decedent are voidable if entered prior to the appointment of a successor in interest (see *Sacks v. FSR Brokerage, Inc.* (1992) 7 Cal.App.4th 950, 957-960), defendant had just as much incentive as plaintiff (if not more) to get a successor in interest appointed. Since defendant opted to wait for plaintiff's estate to figure representation out, it cannot now be a basis to complain of the delay. Moreover, since the failure to respond appears to be a direct result of plaintiff's death, the discovery itself may not actually be delinquent.

Motions DENIED, without prejudice. Plaintiff is hereby ordered to commence and expedite an §§ 8540, 8544(a)(3) petition in this county for the appointment of a personal representative with special powers. If such an action is not commenced within 30 calendar days, this Court will consider a motion for an OSC re: sanctions and/or abandonment (see CCP §§ 583.410, 583.420(a)(2), and CRC 3.1340) and dismissal of the action. The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

CONNOLLY v. DE LA CRUZ

23CV46549

CROSS-DEFENDANT'S DEMURRER TO CROSS-COMPLAINT

This civil action stems from a dispute over easement rights. Before the Court is a demurrer to the operative cross-complaint filed 03/09/23. Just days ago, this Court received an opposition to the demurrer. While it is obviously late, and objected to by cross-defendant, this Court notes that the question of standing – which forms the entire basis for the demurrer – is heavily fact-dependent. For that reason, this Court prefers to consider the opposition rather than give the moving party a temporary victory. To permit adequate time, and to coordinate with other motions, the hearing on this demurrer is hereby continued to 07/07/23 at 9:00 a.m. in Dept. 2, to be heard with another pending demurrer in this case. Cross-defendant is granted leave to file a reply brief to the opposition, pursuant to Code, based on the new hearing date.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.